

25STCV07964 25STCV07964

County: los-angeles

Division: Civil Law and Motion

Department: 730

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Case Number: 25STCV07964 Hearing Date: August 5, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

JOSUA

CAMARENA CRUZ,

Plaintiff,

vs.

GENERAL

MOTORS, LLC, et al.

Defendants

Case No.:

25STCV07964

Hearing

Date:

August 5, 2026

ORDER

GRANTING MOTION TO COMPEL COMPLIANCE WITH SECTION 871.26.

I. BACKGROUND

Plaintiff Josua Camarena

Cruz ("Cruz") entered into a warranty contract with Defendant General Motors, LLC ("GM") regarding a 2022 GM Sierra 1500 ("subject vehicle"). The subject vehicle allegedly has defects and nonconformities making the car effectively worthless. GM allegedly failed to replace the vehicle or reimburse Cruz. Cruz sued GM for five causes of action, including violation of the Song-Beverly act.

On June

30, 2026, GM filed the instant motion to compel compliance with Code of Civil Procedure section 871.26, subdivision (c)(1).[1]

Cruz filed an opposition. GM filed a reply.

II. LEGAL STANDARD

Effective January 1, 2025,
in any action seeking restitution or replacement of a motor vehicle under § 871.20, the parties must follow these rules: within 120 days after an answer or other responsive pleading is filed, each party shall have the right to conduct initial depositions of the plaintiff. (§ 871.26, subdivision (c)(1).) The Court must impose sanctions for failure to comply with section 871.26, absent good cause. (§ 871.26, subd. (j).)

The California Legislature

enacted section 871.20, et seq., which added requirements for certain lemon law actions. (Code Civ. Proc. § 871.20, subd. (a) ["Notwithstanding any other law, this chapter applies to an action, brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty"]; subd. (b) ["This chapter does not apply to

service contract claims under Section 1794 of the Civil Code or any action seeking remedies that are not restitution or replacement of a motor vehicle"].)

III. DISCUSSION

A. Compel Cruz's Deposition

GM

requests the Court compel Cruz to appear for initial deposition, pursuant to requirements under section 871.26, subdivision (c)(1). Section 871.26, subdivision (c)(1), entitles GM to conduct an initial deposition of Cruz within 120 days after filing any responsive pleading. GM filed a demurrer on July 8, 2025. Therefore, GM was entitled to request and conduct Cruz's initial deposition at any point prior to November 5, 2025.

On

July 8, 2025, GM served a notice of deposition on Cruz for July 28, 2025. (Mot., Stark Decl., ¶ 5, Ex. B.) The notice was served alongside an e-mail requesting counsel contact GM's counsel's office if the noticed date did not work for Cruz or Cruz's counsel. (Id. at ¶¶ 4-5, Ex. A.) On July 24, 2025, Cruz's counsel objected to the notice of deposition due to unavailability and agreed to meet and confer regarding rescheduling the deposition. (Id. at ¶ 6, Ex. C.)

On

October 15, 2025, counsel for GM contacted Cruz's counsel requesting dates for Cruz's deposition. (Id. at ¶ 7, Ex. D.) Cruz's counsel did not respond. (Ibid.) On February 10, 2026, Cruz offered April 22, 2026, as an available date; GM confirmed this date and served an amended notice of deposition. (Id. at ¶¶ 8-9, Ex. E-F.) On April 17, 2026, Cruz objected on the basis of unavailability, stating Cruz was no longer available. (Id. at ¶ 11, Ex. H.) On April 21, 2026, Cruz's counsel stated the objected was sent in error and agreed to attend to the deposition. (Id. at ¶ 12, Ex. I.) On April 22, 2026, 7 minutes before the deposition was set to occur, Cruz's counsel e-mailed GM to inform them counsel was no longer available. (Ibid.) The deposition did not go forward and has yet to occur.

Cruz offers no explanation for the failure to proactively offer dates following the initial objection or to reply to the October e-mail

requesting dates. Cruz also offers no explanation for the last-minute cancelation of the April deposition beyond stating the attorney assigned to take the deposition was no longer available. (Ibid.) After this, counsel lost contact with Cruz; they have yet to reestablish communication. (Opp., Smith Decl. ¶¶ 4-5.)

GM made diligent attempts to complete Cruz's initial deposition during the 120 day period by serving notice of deposition and attempting to engage in meet and confer efforts. Cruz failed to make diligent efforts to comply with Section 871.26 requirements and produce Cruz for deposition. As the deposition has still yet to occur, despite GM's efforts to exercise their discovery rights, the Court grants the motion to compel Cruz's initial deposition.

B. Sanctions

GM requests the Court impose sanctions of \$1,500.00 against Cruz's counsel, pursuant to section 871.26, subdivision (j)(2). Section 871.26, subdivision (j)(2), provides unless the party failing to comply shows good cause, the court shall impose \$1,500.00 in sanctions upon plaintiff's counsel for failure to comply with deposition requirements.

Cruz's counsel argues Cruz's counsel should not be punished with sanctions as counsel at all times acted diligently and in good faith. Counsel argues the initial objection was made pursuant to legitimate scheduling needs and "proactively offered an available date range." (Opp., pg. 6 ¶¶ 6-7.) The Court finds no evidence to support Cruz's counsel offered any dates beyond April 22, 2026, and notes that date did not occur due to counsel's own failure to appear. No explanation is provided as to why Cruz's counsel failed to provide any dates until months after the initial time period, despite GM's attempts to meet and confer.

The Court does not find Cruz's counsel shows good cause for failure to comply. Accordingly, the Court imposes sanctions of \$1,500.00 on Cruz's counsel.

IV. CONCLUSION

Defendant General Motors, LLC's motion to compel compliance with

section 871.26 is GRANTED. Cruz is ordered to appear for initial deposition within 10 days of the hearing on this motion.

Defendant General Motors, LLC's request for sanctions is GRANTED. Cruz's counsel is ordered to pay GM \$1,500.00 in sanctions within 15 business days.

GM is ordered to give notice.

DATED:

August 5, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

statutory references are to the Code of Civil Procedure.